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California Bans 6 Artificial Dyes in Foods Served at Public Schools

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TUESDAY, Oct. 1, 2024 (HealthDay News) -- A new law just passed in California makes it the first state to tell public schools they may no longer serve foods that contain six artificial dyes linked to health and behavior problems among children.

Gov. Gavin Newsom signed the California School Food Safety Act into law on Saturday. It bans Red 40, Yellow 5, Yellow 6, Blue 1, Blue 2 and Green 3 in meals, drinks and snacks served in school cafeterias across the state, although the law won't take effect until Dec. 31, 2027.

“Our health is inextricably tied to the food we eat -- but fresh, healthy foods aren’t always available or affordable for families," Newsom said in a news release after signing the bill into law. "Today, we are refusing to accept the status quo, and making it possible for everyone, including school kids, to access nutritious, delicious food without harmful, and often addictive, additives. By giving every child a healthy start, we can set them on the path to a future with less risk of obesity and chronic illness.”

The bill was first proposed in March by Democratic Assembly member Jesse Gabriel, three years after a state report linked consuming synthetic food dyes to hyperactivity and neurobehavioral problems in some children.

“Overall, our review of human studies suggests that synthetic food dyes are associated with adverse neurobehavioral effects, such as inattentiveness, hyperactivity and restlessness in sensitive children,” the report authors wrote. “The evidence supports a relationship between food dye exposure and adverse behavioral outcomes in children, both with and without pre-existing behavioral disorders [such as ADHD].”

Gabriel was thrilled with the signing of the new law.

"California is once again leading the nation when it comes to protecting our kids from dangerous chemicals that can harm their bodies and interfere with their ability to learn," he said in the governor's news release on the law. "This bipartisan law will empower schools to better protect the health and well-being of students and sends a strong message to manufacturers to stop using these harmful additives.”

Importantly, the law only requires manufacturers to remove the artificial dyes in their recipes and replace them with natural alternatives, such as carrot or beet juice. Many companies already do that for consumers in the European Union and other places that prohibit synthetic colors in food and drinks, NBC News reported.

Consumer advocacy groups have long claimed that FDA approval of artificial dyes is based on outdated research, and that some studies show children's bodies are more sensitive to chemical exposure.

“What made this type of law necessary is that FDA hasn’t been able or willing to do anything about these issues for several decades,” Brian Ronholm, director of food policy at Consumer Reports, told NBC News. “There’s so much more data and information on the health effects now than there’s ever been.”

Last week, the FDA did hold a public meeting to discuss the safety of food chemicals, including color additives, as part of a broader effort to address food safety in this country.

The International Food Additives Council, said in a statement that state-specific legislation such as the California School Food Safety Act undermines the FDA.

“This legislation is not only misguided, but it also increases costs and complexity, ultimately affecting the population that needs nutrition the most while disrupting national food regulations and causing consumer confusion,” the group told NBC News. “This approach fosters unnecessary fear and mistrust in the federal system.”

But Gabriel said he hopes the new California law will instead prompt more change on the federal level.

“We think we are putting the right kind of pressure on the federal government to step up and do the right thing and really bring the United States into line with so many other countries around the world,” he told NBC News.

More information

The Center for Science in the Public Interest has more on the safety of food dyes.

SOURCE: California School Food Safety Act, Sept. 28, 2024; Gov. Gavin Newsom, statement, Sept. 28, 2024; NBC News

What This Means For You

California has become the first state to ban six food colorings in public school cafeterias because of their links to health and behavioral issues in vulnerable children.

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